

Section 10010 next provides that “a prospective plaintiff shall make the demand [for reimbursement for the cost of the work product generated to support the notice] in writing and shall substantiate the demand with financial documentation, such as a detailed invoice for demography services. A political subdivision may request additional documentation if the provided documentation is insufficient to corroborate the claimed costs.” (Elec. Code, § 10010(f).) Section 10010(f) also provides for the cap of \$30,000, which is to be adjusted based on the Consumer Price Index.

As discussed previously, the City requested additional documentation to substantiate the demand for reimbursement, but Petitioner did not provide this requested documentation until well after this lawsuit was filed and only after withdrawing Petitioner’s motion for a protective order seeking to avoid disclosing the prospective plaintiff’s identity and characteristics. (Egger Decl., ¶ 9.) The City paid Petitioner on 1/15/26 – i.e., within 45 days of receiving the information. (Letourneau Decl., ¶¶ 4-5, Egger Decl., Exh. 1.)

“Under California law, ‘each party to a lawsuit must pay its own attorney fees unless a contract or statute or other law authorizes a fee award.’ ([Citations]; Code Civ. Proc., § 1021.) Thus, unless specifically provided by statute or agreement, attorney fees are not recoverable.” (*K.I. v. Wagner* (2014) 225 Cal.App.4th 1412, 1420-1421; *Segal v. ASICS America Corp.* (2022) 12 Cal.5th 651, 666-667 [Attorney fees may be awarded only when they are recoverable as costs under Code of Civil Procedure section 1033.5, subdivision (a)(10)—that is, only when they are authorized by contract, statute, or law].)

Upon motion, a court may award attorneys' fees to a successful party against one or more opposing parties in any action which has resulted in the enforcement of an important right affecting the public interest if: (a) a significant benefit, whether pecuniary or nonpecuniary, has been conferred on the general public or a large class of persons, (b) the necessity and financial burden of private enforcement, or of enforcement by one public entity against another public entity, are such as to make the

		award appropriate, and (c) such fees should not in the interest of justice be paid out of the recovery, if any. (Code Civ. Proc., § 1021.5.) Here, the important right affecting the public interest was obtained before this writ was filed. In contemplation of such a success under the CVRA, the legislature provided that the party responsible could be awarded up to \$30,000.00 (adjusted for inflation) as compensation for fees incurred in enforcing the important right. The writ filed by Petitioner here had no bearing on the issue of whether the City would convert its “at large” voting system to a district based election system. That task was accomplished after petitioner served her initial demand letter but before the Petition was filed. The Petition here sought only to compel the City to pay what was owed to Petitioner, though Petitioner had not yet provided the requested documentation to corroborate the claimed costs. Thus, Petitioner was not a “successful party” under Section 1021.5 and the filing of the petition for writ did not confer an important public benefit. And while Petitioner appears entitled to the statutory fees under Section 10010, it appears that she has already received such fees. Accordingly, the motion is DENIED. Respondent to give notice.
13	Cannon vs. Crown Point Condos No. 2	<u>Motion for Preliminary Injunction</u> No Tentative.